RUNYARARO MAGADZIRE
versus
THE TRUSTEES FOR THE TIME BEING OF THE SHUMBA MURENA FAMILY TRUST
and
CHIVERO PROPERTIES PRIVATE LIMITED

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 12 and 18 February 2026

Opposed Application

J.*B Matandire*, for the applicant
T.A. Mandizvidza with him A. Masiya, for the respondents

MAMBARA J:

Factual background

[1] This is an opposed court application for rescission of a default judgment granted in proceedings conducted virtually (the "default judgment"). The application is brought in terms of r 27 of the High Court Rules, 2021 ("the Rules"). The material background is contained in the consolidated record placed before the court.

[2] The applicant's explanation for the default is, in essence, that her then legal practitioner logged into the virtual session when the matter was called; that he requested and obtained judicial indulgence to attend another virtual matter set down later that day; that the present matter was placed at the end of the roll; and that when counsel later attempted to re-join, he learned that the matter had resumed earlier and default judgment had been entered in the applicant's absence.

[3] The applicant characterises the entry of default judgment as a "snatching" of judgment, and further alleges that the default was not wilful, alternatively that she has shown good and sufficient cause for the indulgence of rescission.

[4] The respondents dispute that this was a case of "snatching judgment". They contend that the applicant (through counsel) was in default and that the default judgment was properly entered. They also dispute that the applicant has shown good and sufficient cause for rescission, and emphasise the law on litigants bearing the consequences of their counsel's negligence.

[5] Shortly before hearing, the 1st respondent's legal practitioners addressed correspondence to the Registrar indicating that further statutory material authority had come to counsel's attention, namely Proclamation 8 of 2002 (Statutory Instrument 137 of 2002), said to be material to the merits. The same correspondence states that the proclamation provides (inter alia) for the incorporation of "Lot 1A of Johannesburg" into the area of the local authority.

Issues for determination

[6] The determinative questions are these:

"(a) Is the application properly grounded in r 27 (and/or r 29) of the Rules?
(b) Has the applicant established "good and sufficient cause" for rescission within the meaning of r27 (2)?
(c) Is this a "snatching judgment" case in the classic sense discussed in the authorities?
(d) Are the applicant's prospects of success on the merits such as to satisfy the rescission threshold?
(e) What order as to costs is just"?

Governing law and guiding authorities

[7] Rule 27(1) permits a party against whom judgment has been given in default to make a court application— "not later than one month after he has had knowledge of the judgment"— for that judgment to be set aside, where after the ordinary opposed-motion timetable applies.

[8] Rule 27(2) vests the court with a discretion: if satisfied that there is "good and sufficient cause", the court may set aside the judgment and grant leave to defend or prosecute, on such terms as to costs and otherwise as the court considers just.

[9] Rule 29 provides a distinct, and narrower, power to correct, vary or rescind an order, including where the order was "erroneously sought or erroneously granted in the absence of any party affected thereby", or where there is ambiguity/patent error, or a mistake common to the parties.

[10] The Supreme Court and this court have consistently held that "good and sufficient cause" in rescission matters requires a structured inquiry. Among the frequently cited formulations is that expressed by Gubbay CJ (as quoted in later decisions), namely: (i) the reasonableness of the explanation for the default; (ii) the bona fides of the application; and (iii) the bona fides of the defence on the merits, carrying some prospect of success, considered not individually but cumulatively.

[11] "Wilful default" is classically described as occurring when a party— "with full knowledge of the service or set down of the matter and of the risks attendant upon default"— freely takes a decision to refrain from appearing. The jurisprudence accepts that negligence

is often present; the practical inquiry is whether the negligence is so gross as to shade into wilfulness.

[12] The law is equally clear that, as a matter of policy, there must be finality in litigation. In the Supreme Court of Zimbabwe judgment in *Maheya v Independent African Church* (SC 58/07), Malaba JA (as he was then) reaffirmed that the court exercises discretion bearing in mind, inter alia, the respondent's interests in the finality of the judgment and the avoidance of unnecessary delay in the administration of justice.

[13] That same judgment also restated the principle that negligence (or wilful disdain) by a legal practitioner is ordinarily visited upon the client. It cited *Beitbridge Rural District Council v Russell Construction Co* 1998 (2) ZLR 190 (S) and quoted Sandura JA emphasising that the fact that fault lies largely with legal practitioners "does not assist" the party, and that the practitioner's non-compliance is treated as the party's non-compliance.

[14] Malaba JA further cited *S v McNab* 1986 (2) ZLR 280 (S) and endorsed the view that "clients should in such cases suffer for the negligence of their legal practitioners", adopting the well-known caution (drawn also from *Saloojee and Anor NNO v Minister of Community Development 1965(2) SA 135A)* that there is a limit beyond which a litigant cannot escape the result of counsel's lack of diligence, lest the observance of rules be undermined.

[15] As to "snatching judgment": the decisions make plain that the court frowns upon opportunistic conduct where one party knows (or ought reasonably to know) that the other's failure is an obvious mistake yet rushes to take default relief without fair warning. Illustratively, decisions referring to *Zimbabwe Banking Corporation Ltd v Masendeke* 1995 (2) ZLR 400 (SC) describe cases where a judgment was "snatched" against a party who had no rational reason to allow default, such that the default was plainly inadvertent.

[16] On the substantive land-status point raised in the late correspondence: in *Adore Gold (Pvt) Ltd v Ministry of Lands and Rural Resettlement N.O. & Ors,* HH44-14, the court recorded that in 2002 "Lot 1A of Johannesburg" was incorporated into the local authority area as part of an urban expansion "in terms of Proclamation 8 of 2002 published in the Government Gazette." That proposition is again consistent with the factual attachment described in the correspondence to the Registrar in these proceedings.

Analysis and determination

[17] I deal first with r 29. In my view, r 29 is not the proper route on the facts presented. The default judgment was not shown to have been "erroneously sought" or "erroneously granted" in the sense contemplated by r 29(1)(a). The matter was set down; the applicant's counsel

was aware of the set down and participated at least part of the day; and the court proceeded in default when the applicant was absent. That is the paradigm situation contemplated by r 27, not r 29.

[18] The matter therefore turns on r 27(2): has the applicant shown "good and sufficient cause"?

[19] The applicant's explanation for the default is that counsel left to attend another matter and missed the resumption of this matter. The factual narrative is not that the applicant was ambushed by a surprise set down. It is the opposite: counsel knew the set down, knew the risks, and required indulgence precisely because of the risks.

[20] The jurisprudence teaches that wilful default is not limited to deliberate spite; it is sufficient that the party freely decides to refrain from appearing with knowledge of the set down and attendant risks. Here, the choice to accept another engagement that clashed with a live court sitting was not an act of fate; it was a choice.

[21] I accept, of course, that in practice counsel sometimes find themselves double-booked. A court does not expect "Solomonic wisdom" nor "chameleonic caution" from those who walk the corridors of justice; moderation and prudent common sense usually suffice. What is expected, at the very least, is basic diligence: to secure alternative representation, to obtain a clear arrangement for recall, to remain reachable, and to re-join timeously when a matter has been stood down "to the end of the roll".

[22] On the applicant's own version, counsel left at a critical time and only later sought to re-connect, learning that the matter had resumed earlier. That is not a reasonable explanation that meets the standard in the authorities; it demonstrates classic professional dereliction.

[23] Even if one were to characterise the default as negligent rather than wilful, that is not the end of the matter. The court must still consider bona fides and prospects on the merits cumulatively with the explanation.

[24] Turning to "snatching judgment": the applicant's counsel sought to paint the respondents' obtaining of default judgment as the archetypal ambush. The record does not support that characterisation. The case law on snatching is aimed at those who exploit an obvious mistake in circumstances where fairness required a warning and where it was plain that the defaulting party would not, rationally, decide to take default.

[25] Here, the respondents' counsel did not "discover" an unguarded wicket in a back alley; the wicket was in an open stadium, with the official umpire present, after the batsman had

walked off the pitch. Harsh as it may sound, the Rules do not require the opposing party to run the defaulting party's diary.

[26] I now deal with prospects of success. The applicant must show a bona fide defence on the merits carrying some prospect of success. This does not require proof on a balance of probabilities at rescission stage, but it does require more than a wish and a prayer.

[27] The respondents placed reliance on additional statutory material: Proclamation 8 of 2002 (SI 137 of 2002), said to designate Lot 1A of Johannesburg as incorporated into the local authority area.

[28] Independently, the reported decision in *Adore Gold Supra* records that the same land—Lot 1A of Johannesburg—was incorporated into the local authority area in 2002 in terms of that proclamation.

[29] This point is not a mere academic footnote. Where a party's core merits argument depends on land status and the legal regime applicable thereto, a proclamation that the land was incorporated into an urban local authority area can be dispositive (or at least seriously destabilising) of the applicant's posture on the merits.

[30] In the present matter, the applicant's counsel was notably coy in engaging with the legal consequences of this proclamation. Coyness may be fashionable in courtship; it is not a forensic virtue when statutory instruments enter the room and take the only remaining chair.

[31] On the papers as they stand, the applicant has not satisfied this court that there is a bona fide defence carrying prospects of success sufficient to justify the extraordinary indulgence of rescission.

[32] There is a further policy consideration: the applicant seeks the court's indulgence in circumstances where the default was occasioned by counsel's conduct. The Supreme Court has cautioned that there is a limit beyond which litigants cannot escape the consequences of their counsel's lack of diligence; to hold otherwise would have a disastrous effect on observance of the Rules.

[33] The proper remedy for a litigant prejudiced by professional negligence may lie elsewhere; but the court's discretion under r 27 is not a charitable fund. It is a judicial discretion, exercised to do justice between parties while maintaining the integrity of procedure and the finality of litigation.

[34] We are, as Malaba JA then reminded the profession, to do justice—but that justice includes the respondent's interest in finality and the court's interest in efficient administration.

[35] Considering the cumulative effect of (i) the unreasonable explanation for the default; (ii) the absence of a credible "snatching judgment" narrative; and (iii) the applicant's failure to demonstrate prospects of success in light of the proclamation material, I am not satisfied that good and sufficient cause has been shown.

Order

[36] In the result, it is ordered that:

(a) The court application for rescission of default judgment in Case No. HCH 4707/25 be and is hereby dismissed.
(b) The applicant shall pay the respondents' costs of suit.

MAMBARA J……..

John Mugogo Attorneys, legal practitioners for the applicant
Masiya- Sheshe & Associates, legal practitioners for the respondents